

ELIZABETH II



1970 CHAPTER vi

An Act to confer further powers on the Warwickshire
County Council in relation to the finances of the county;
and for other purposes. [15th May 1970]

WHEREAS—

(1) It is expedient that further and better provision should be made with reference to the finances of the administrative county of Warwick and that the powers of the county council of that administrative county in relation to the investment of their superannuation fund should be enlarged and extended as by this Act provided:

(2) It is expedient that the other provisions in this Act should be enacted:

(3) The purposes of this Act cannot be effected without the authority of Parliament:

(4) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 1933 c. 51. have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title. 1. This Act may be cited as the Warwickshire County Council Act 1970.

Interpretation. 2.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them:—

1933 c. 51. “ the Act of 1933 ” means the Local Government Act 1933;

1937 c. 68. “ the Act of 1937 ” means the Local Government Superannuation Act 1937;

1961 c. 62. “ the Act of 1961 ” means the Trustee Investments Act 1961;

“ the Council ” means the county council of the county;

“ the county ” means the administrative county of Warwick;

“ the county fund ” means the county fund of the Council;

“ enactment ” means any enactment, whether public general or local, and includes any order, byelaw, rule, regulation, scheme or other instrument having effect by virtue of an enactment;

“ the fund ” means the superannuation fund maintained by the Council under Part I of the Act of 1937;

“ signature ” includes a facsimile of a signature by whatever process reproduced.

(2) Any reference in this Act to an enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment including this Act.

Power to
raise money
by bills.

3. In addition to the modes of borrowing prescribed by the Act of 1933, the Council may raise money—

(1) for any purpose for which the Council are authorised to borrow;

(2) in anticipation of the receipt of revenues, for any purpose for which the revenues of the Council may properly be applied;

by means of bills (to be called “ Warwickshire County Council bills ”, in this section referred to collectively as “ bills ” and separately as a “ bill ”), subject to, and in accordance with, the following provisions:—

(a) A bill shall be in the form prescribed by regulations made under this section and shall be for the payment of the

sum named therein in the manner and at the date therein mentioned, being a date not more than twelve months from the date of the bill:

- (b) A bill shall entitle the holder thereof to payment at maturity of the sum expressed in the bill to be payable:
- (c) Bills may be offered for purchase (whether by tender or otherwise) in such manner and on such conditions as the Council may determine:
- (d) Bills shall be issued under the authority of a resolution passed by the Council, and shall bear the signature of the treasurer of the Council or of some other person authorised by the Council:
- (e) The Council may make regulations providing for—
 - (i) the preparation, form, mode of issue, payment and cancellation of bills;
 - (ii) the issue of new bills in lieu of bills defaced, lost or destroyed;
 - (iii) the prevention, by the use of counterfoils or of a special description of paper or otherwise, of fraud in relation to bills; and
 - (iv) the giving of a proper discharge on the payment of a bill:
- (f) The amount of money received in respect of a bill shall be deemed to be principal money raised by means of the bill and the difference between the amount payable in respect of a bill and the amount received in respect thereof shall be deemed to be interest on the principal money so raised:
- (g) The aggregate amount payable on bills current at any one time shall not (except by the amount payable on bills issued shortly before any other bills fall due in order to pay off the last-mentioned bills) exceed—
 - (i) the sum of three million five hundred thousand pounds; or
 - (ii) the sum being one-fifth of the aggregate during the then current financial year of—
 - (A) the amount estimated to be produced by the levying of rates in the county to meet liabilities falling to be discharged by the Council; and
 - (B) the amount of the net expenses referred to in sub-paragraph (1) of paragraph 1 of Schedule 2 to the Warwickshire and Coventry Police (Amalgamation) Order 1969;whichever is the greater:

S.I. 1969/728.

(h) Subject to the provisions of the last preceding paragraph, the Council may renew a bill at maturity:

(i) The Council may borrow for the purpose of repaying the principal money raised by bills but except as aforesaid any power of the Council to borrow shall be suspended to the extent of the amount which has been raised by the issue of bills.

Power to raise money by bearer bonds.

4. In addition to any other method by which the Council may raise any money which they are authorised to borrow, they may, with the consent of the Treasury and subject to such conditions as the Treasury may impose, raise the money by means of the issue of bearer bonds or other securities to bearer.

Power to raise money abroad.

5.—(1) Any method by which the Council are empowered by any enactment to raise any money which they are authorised to borrow shall, notwithstanding anything in such enactment, be deemed to include the raising of money by that method outside the United Kingdom or in any foreign currency.

(2) The powers conferred by the foregoing subsection shall not be exercised except with the consent of the Treasury, and subject to such conditions as the Treasury may impose.

(3) The enactments empowering the Council to raise money shall have effect in relation to a transaction authorised by this section for the raising of money in a foreign currency as if for any reference in those enactments to sterling there were substituted a reference to the foreign currency and for any reference therein to a sum expressed in terms of sterling there were substituted a reference to the sum expressed in terms of the foreign currency (adjusted, where necessary, to produce an amount which the Council consider appropriate having regard to all the circumstances of the transaction).

(4) Nothing in this section shall be taken as exempting the Council from the provisions of any order under section 1 of the

1946 c. 58.

6. In its application to the investment by the Council under subsection (3) of section 21 of the Act of 1937 of any moneys forming part of, but which are not for the time being moneys required to meet payments out of, the fund, the Act of 1961 shall have effect as if—

(a) in Part III (Wider-Range Investments) of Schedule 1 to that Act—

(i) in paragraph 3 there were added at the end the words “or in any units or other shares of a property unit trust”;

(ii) the following additional paragraph were included:—

“ 4. In any securities issued in any of the scheduled territories within the meaning of section 1 of the Exchange Control Act 1947, or in Canada or 1947 c. 14. in the United States of America, or in any of the following countries, namely, Austria, Belgium, Denmark, France, Holland, Italy, Luxembourg, Norway, Portugal, Spain, Sweden, Switzerland and Western Germany ”;

(b) in Part IV (Supplemental) of the said Schedule—

(i) in paragraph 1 there were inserted after the word “ Schedule ” the words “ other than those mentioned in paragraph 4 of the said Part III ”;

(ii) after paragraph 2 there were inserted the following paragraph:—

“ 2A. The securities mentioned in paragraph 4 of Part III of this schedule do not include shares or debenture stock not fully paid up (except shares or debenture stock which, by the terms of issue, are required to be fully paid up within nine months of the date of issue) ”.

7.—(1) In this section “ narrower-range part ” and “ wider-range part ” in relation to the fund have the same meanings as they have for the purposes of the Act of 1961.

Modification of provisions as to division of fund.

(2) Notwithstanding the division of the fund made in pursuance of subsection (1) of section 2 of the Act of 1961, the fund may be again divided so that, at the time of the latter division, the value of the wider-range part bears to the then value of the narrower-range part the proportion of three to one; and such proportion is in the Act of 1961, as modified by subsection (3) of this section, referred to as “ the prescribed proportion ”.

(3) For the purposes of any division of the fund in accordance with subsection (2) of this section, the Act of 1961 shall have effect in relation to the fund subject to the following modifications:—

(a) in subsection (1) of section 2, for the words “ equal in value ” there shall be substituted the words “ in the prescribed proportion ”;

(b) in paragraph (b) of subsection (3) of section 2 and in sub-paragraph (b) of paragraph 3 of Schedule 2, for the words from “ each ” to the end of that paragraph and sub-paragraph there shall be substituted the words “ the wider-range part of the fund is increased by an

amount which bears the prescribed proportion to the amount by which the value of the narrower-range part of the fund is increased ”;

(c) in subsection (3) of section 4, for the words from “ so as either ” to “ each other ” there shall be substituted the words “ so as to bear to each other either the prescribed proportion or ”;

(d) section 13 shall not apply in relation to the fund.

Investment
of fund in
acquisition,
etc., of land.

8.—(1) Subject to the provisions of this section, the powers exercisable by the Council under the Act of 1961 to invest any property belonging to the wider-range part of the fund shall include power to invest such property in such manner as they think fit (and whether alone or in association with any other person) in the acquisition, development or management of land situated in the United Kingdom and used or to be used for residential, commercial or industrial purposes, but Part IV of Schedule 1 to the Act of 1961 shall not apply to any investment made under this subsection.

(2) So long as the value of the investments of property for the time being made under the powers conferred by the foregoing subsection is equal to or greater than one quarter of the total value of the fund, no further investment may be made thereunder.

(3) For the purposes of the last foregoing subsection, the value of any investment of property belonging to the wider-range part of the fund shall be deemed to be the value of the investment at the time at which it was made.

(4) Subsections (2) to (7) of section 6 of the Act of 1961 shall apply in relation to the exercise of the powers of investment conferred by subsection (1) of this section as they apply in relation to the exercise by the Council of the powers conferred by section 1 of that Act to invest any property belonging to the wider-range part of the fund in a manner specified in Part III of Schedule 1 to that Act.

(5) In this section “ property ” and “ the wider-range part ” in relation to the fund have the same meanings as they have for the purposes of the Act of 1961.

Section 21 (3)
of Act of 1937
not to limit
foregoing
powers.

Expenses of
investment
of fund.

9. The provisions of the last three foregoing sections shall have effect notwithstanding anything in subsection (3) of section 21 of the Act of 1937.

10. All costs, charges and expenses incurred by the Council in investing moneys forming part of the fund maintained by them, or otherwise in relation thereto, shall be paid by the Council out of the fund.

11.—(1) The Council may lend to any local authority, and a local authority may borrow from the Council, upon such terms and conditions as may be agreed, such money as the Council think fit to lend and as the local authority are authorised to borrow for the purpose for which such money is proposed to be borrowed, and any money so lent shall be repaid to the Council by the local authority within the period prescribed by the sanctioning authority or otherwise for the repayment by the local authority of the money they are authorised to borrow:

Power to Council to lend money to local authorities, etc.

Provided that the powers of this subsection shall not be exercised unless—

(a) the local authority borrowing from the Council is either—

(i) the council of a county district within the county ; or

(ii) an authority of which the Council is a constituent member; or

(iii) an authority to which the Council appoint representatives; or

(iv) a member authority of a consortium of which the Council is also a member; or

(b) the sum lent by the Council is part of a larger sum borrowed by the Council by way of stock issue, bond issue, foreign loan or issue of bills for their own needs and for the needs of another local authority seeking to raise money by the same means.

(2) Any sum borrowed by the Council for the purpose of this section shall be repaid within a period to expire not more than one year after that for which the same was lent by them to the local authority.

(3) Where any sum is borrowed by the Council for the purposes of this section it shall be lawful for the Council for such periods as they may think fit to suspend any annual provision required to be made by virtue of any enactment for the time being in force for the repayment of the sum borrowed.

(4) The Council shall be entitled to charge such rate of interest in respect of any particular loan under this section as may be agreed between the Council and the borrower:

Provided that the Council shall ensure so far as it is reasonably practicable to do so that having regard to all the circumstances existing at the time the loan is made the rate of interest agreed is such that no loss is incurred by the Council in respect of the loan.

(5) All costs, charges and expenses incurred by the Council in respect of any particular loan under this section shall be met by the borrower.

(6) In this section the expression “local authority” means the council of a county, county borough or county district, and

1875 c. 83.

any other authority being a local authority as defined by section 34 of the Local Loans Act 1875 and a police authority and includes any joint board if all the constituent authorities are such local authorities as aforesaid.

Power to
borrow.

12.—(1) The Council may borrow without the consent of any sanctioning authority—

(a) such sums as may be necessary for the payment of the costs, charges and expenses of this Act;

(b) such sums as may be requisite for the purpose of lending to a local authority under section 11 (Power to Council to lend money to local authorities, etc.) of this Act.

(2) The Council shall pay off all moneys borrowed under paragraph (a) of the foregoing subsection within such period as the Council may determine not exceeding five years from the passing of this Act.

(3) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Act shall extend and apply to money borrowed under this section as if it were borrowed under the said Part IX and the period fixed under this section or under subsection (2) of the said section 11 for the repayment of any money borrowed under subsection (1) of this section shall as respects that money be the fixed period for the purpose of the said Part IX.

(4) It shall not be lawful to exercise the powers of borrowing conferred by this section other than the power of borrowing to pay the costs, charges and expenses of this Act, except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946.

1946 c. 58.

Saving for
Exchange
Control Act
1947.

1947 c. 14.

13. Nothing in this Act shall be taken as exempting the Council from the provisions of the Exchange Control Act 1947.

Protection of
members and
officers of
Council from
personal
liability.

1875 c. 55.

14. Section 265 of the Public Health Act 1875 shall apply to the Council as if any reference in that section to the said Act of 1875 included a reference to this Act and as if any reference in that section to a member of a local authority included a reference to a member of a committee or a sub-committee of a local authority.

Costs of Act.

15. The costs, charges and expenses preliminary to, and of and incidental to, the preparing, applying for, obtaining and passing of this Act shall be paid by the Council.

PRINTED IN ENGLAND BY THE OYEZ PRESS

PRINT DIVISION OF THE SOLICITORS' LAW STATIONERY SOCIETY, LTD.

FOR C. H. BAYLIS

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

1s. 9d. [9p] net

SBN 10 510670 4



Warwickshire County Council Act 1970

CHAPTER vi

ARRANGEMENT OF SECTIONS

Section

1. Short title.
2. Interpretation.
3. Power to raise money by bills.
4. Power to raise money by bearer bonds.
5. Power to raise money abroad.
6. Extension of power to invest fund moneys.
7. Modification of provisions as to division of fund.
8. Investment of fund in acquisition, etc., of land.
9. Section 21 (3) of Act of 1937 not to limit foregoing powers.
10. Expenses of investment of fund.
11. Power to Council to lend money to local authorities, etc.
12. Power to borrow.
13. Saving for Exchange Control Act 1947.
14. Protection of members and officers of Council from personal liability.
15. Costs of Act.